

FOSTER v. IRBC2 PROPERTIES LLC et al
21CV45573

DEMURRER TO COMPLAINT

This is a wrongful foreclosure case. Before the Court this day is a demurrer by co-defendant Real Time Resolutions Inc. to parts of the operative Complaint. Although the demurrer is technically deficient (see CCP §430.60 and CRC 3.1320(a)), a review of the supporting memorandum reveals that the demurrer is directed to just the 1st (cancellation) and 2nd (slander of title) causes of action. On 07/22/22, this Court sustained a demurrer to these same causes of action (filed by other parties), and gave plaintiff 30 days with which to amend to cure. In opposition to this pending demurrer, plaintiff acknowledges his intent to amend the operative pleading in such a way as to also cure the concerns raised by Real Time Resolutions Inc. Thus, as a practical matter, the demurrer may be treated as substantively MOOT, although there is the related question of whether plaintiff should be allowed to move Real Time Resolutions Inc. from the cancellation and slander causes of action over to the accounting cause of action, but to make sure all parties are on the same page, the demurrer is SUSTAINED on uncertainty grounds, with 20 days leave to amend, for the same reasons stated in this Court's 07/22/22 order.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare formal Orders pursuant to Rule of Court 3.1312 in conformity with these rulings.